

November 25, 2005



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and
Hazardous Materials
Safety Administration**

DOT-SP 9694
(NINTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of Chlorine in MC 331 cargo tanks equipped with angle valves and pressure relief valves not presently authorized by the regulations. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.315(i)(13) in that the pressure relief valves are not authorized except as specified herein; and § 178.337-9(b)(8).
5. BASIS: This special permit is based on the application of DPC Industries, Inc., dated February 20, 2004, submitted in accordance with § 107.109.

November 25, 20056. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Chlorine	2.3	UN1017	N/A

7. SAFETY CONTROL MEASURES: Prescribed packaging is an MC 331 cargo tank motor vehicle fabricated and equipped for chlorine service in accordance with the HMR except as follows:

a. The angle valves must be tested before installation and once every twelve months at not less than 225 psig using dry air or inert gas.

b. The angle valves must conform to Midland Manufacturing Corporation's drawing A-713-ML revised January 1, 1991, in lieu of that prescribed in § 178.337-9(b)(8). Angle valves conforming to Midland Manufacturing Corporation's drawing A-713-ML dated June 3, 1986 and A-713-ML dated December 1, 1987 are authorized for use.

c. The pressure relief valve must conform to Midland Manufacturing Corporation's drawing A-1402 Series, valve number A-14227-ML, set at 225 psig, dated April 26, 1990, in lieu of that prescribed in § 173.315(i)(13). Pressure relief valves conforming to Midland Manufacturing Corporation's drawing A-1402 Series, valve number A-14227 dated September 8, 1986 are authorized for use.

8. SPECIAL PROVISIONS:

a. Drivers must have been instructed as to necessary safeguards and procedures in the event of unusual delay, fire, or accident.

b. Each cargo tank must be plainly marked on the curb side near the front, in letters at least two inches high on a contrasting background, "DOT-E 9694".

c. Carriers operating under the terms of this special permit must hold a "Satisfactory" safety rating, as prescribed in Part 385 of 49 CFR.

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d. Packagings permanently marked 'DOT-E 9694', prior to November 1, 2006 may continue to be used under this special permit for the remaining service life of the packaging or until the special permit is no longer valid. Packagings marked on or after November 1, 2006 must be marked 'DOT-SP 9694'.

e. Shipping papers displaying 'DOT-E 9694' may continue to be used until November 1, 2006, provided the special permit remains valid.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport the cargo tank covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

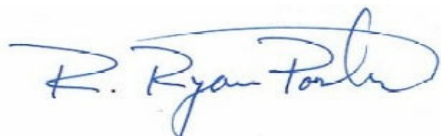
Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous

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materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this exemption are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this exemption must notify the Associate Administrator for Hazardous Materials Safety in writing, of any incident involving a package, shipment or operation conducted under terms of this exemption.

Issued in Washington, D.C.:



for Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: AM